

When "We Already Have Wills" Isn't Enough

Most couples believe that once their wills and powers of attorney are signed, their planning is done. For years, it usually is. Then one spouse loses capacity — dementia, stroke, sudden illness — and the plan that looked complete on paper starts to unravel.

The problem isn't the will. It's everything the will assumed would still be true.

A will typically names the spouse as executor. A power of attorney typically names the spouse as attorney. Both assume a healthy, capable partner will be there to act. When that partner is the one who becomes incapable, the plan loses its backup. No one can sign for a transaction, file a tax election, or make the decisions the plan was built around — a spouse's authority under an old POA doesn't transfer to anyone else, it simply stops working.

What follows is rarely a crisis of intention; everyone still agrees on what should happen. It's a crisis of mechanics — no valid authority to act, and a second spouse whose own plan is now frozen in place.

Joint tenancy on the family home often makes this worse. Couples add each other's names assuming it's the simple, low-cost option — no probate, an easy transfer at death. But that survivorship right holds whether or not it still fits the plan, and unwinding it needs both owners' consent. A spouse without capacity cannot consent, so severing joint tenancy falls to an attorney under a POA — raising its own conflict if that attorney also benefits from the plan. The simplest form of ownership becomes the hardest asset to untangle.

None of this is a reason to panic — it's a reason to review. Confirm both POAs are current, broad enough, and name a capable alternate; check that wills account for either spouse predeceasing the other; and make sure jointly held property matches the plan.

The best time to close these gaps is well before anyone needs to rely on them.